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Case Name: *John Roe 1, et al. v. Doe Entity 1, et al.*

Case No.: 22CV408177

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiff John Roe 1 moves under Code of Civil Procedure Sections 379.5 and 1048 for an Order:

1. Severing John Roe 4's claims against Defendant Mountain View Whisman School District (MVWSD") from John Roe 1's claims against MVWSD;
2. Directing the Clerk to assign a separate case number to the severed John Roe 4 action;
3. Retaining the August 24, 2026 trial date for John Roe 1's claims against MVWSD;
4. Providing that John Roe's 4 shall proceed to trial on a later date determined by the Court;
5. Providing that the July 31, 2026 hearing on Pamela M. Carmon's motion to substitute as Plaintiff John Roe 4 shall remain on calendar and that any order granting substitution shall apply in the severed action;
6. Providing that several shall not require duplication of completed discovery, depositions, expert disclosures, or other proceedings;
7. Maintaining in both actions the existing protective order and the separate order permitting Plaintiffs to proceed under Court-authorized pseudonyms; and
8. Granting such other relief as the Court deems just and proper.

Notice of Motion (the "Motion") at 2:3-19 (filed: July 23, 2026).

Pamela M. Carmody, whose Motion on July 31, 2026 the Court granted to substitute as Plaintiff John Roe 4, stipulates, joins, and consents to the relief requested in this Motion. *Id.* at 2:20-22.

The Motion came on for hearing on August 19, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

PROCEDURAL BACKGROUND

This is a case filed way back in 2022 that all parties and all counsel for all parties have long known is going to trial on August 24, 2026, ever since the undersigned Judge told them over nine months ago in its December 12, 2025 Order that this already twice-continued trial is set for August 24, 2026 *and would not be continued further*.

This matter has an extensive procedural history of repeated requests for severance, which the Court finds beyond any doubt is a tactic that these parties have repeatedly tried to use to continue this trial—a tactic that has already failed many times because this Court has consistently rejected these same parties’ repeated applications for severance. For clarity of the record, this procedural history regarding severance requests warrants discussion here.

In its Order filed on December 1, 2025, this Court—after carefully reviewing the extensive *ex parte* application papers brought by Plaintiffs and other parties requesting that this Court sever SCUSD’s claims into separate actions—DENIED that application for severance, explaining: “This case was commenced on December 5, 2022. Trial has long been set for January 20, 2026. Plaintiffs’ dilatory conduct—including but not limited to this 11th-hour application—cannot and do[es] not create an emergency here. Application denied.” Order at 2:24-26 (filed: Dec. 1, 2025).

Not content with their *ex parte application* for severance that the Court DENIED, the parties thought that they could change this Court mind or force this Court’s hand by filing what they styled as a “Stipulation to Sever; To Continue The Trial and all Related Deadlines”—to which they attached a Proposed Order that they evidently expected the Court to rubber stamp because, after all, the parties stipulated to it. But the Court DENIED that stipulated request as well in an Order filed on December 3, 2025, just two days after the Court’s December 1, 2025 Order DENYING their *ex parte* application. As the Court pointed out in this second Order on this same severance issue: “This is a case filed in 2022 that has long been set for trial for January 20, 2026—after it was already continued from August 11, 2025. Counsel’s dilatory actions in making this 11th-hour application do not create an emergency and are not well received. Counsel can bring a motion *in limine with the trial judge* to sever once a trial judge is assigned[.]” Order at 6:26-28 (filed: Dec 3, 2026) (emphasis added).

Having failed to get a continuance through their repeated requests for a severance, these same parties within a week filed another application for a stay, but this time trying a different and more successful tactic: by invoking the statutory requirement that a summary judgment motion be heard at least 30 days before trial. So, separate and apart from the severance requests that the Court had repeatedly denied, the Court granted a continuance of the trial to August 24, 2026 so that SCUSD’s Motion for Summary Judgment could be timely heard on July 17, 2026. Order at 2:7-18 (filed: Dec. 12, 2025). But lest there be left any doubt in their minds on how their future attempts to delay the August 24, 2026 trial would be received, the Court in the bottom line of this December 12, 2025 Order wrote in bold print: “*All parties* are hereby put on Notice that there will be no further continuance of the August 24, 2026 trial date.” Order at 3:17-20 (filed: Dec. 12, 2026) (emphasis added).

Yet now, the day before the trial judge is to be assigned at the Trial Assignment Hearing that the parties have known for over nine months was set for August 20, 2026 in this Court’s December 3, 2025 Order *supra*, Plaintiffs come before this Civil Case Manager by this new Motion demanding severance again—with trial set to start in less than one week on August 24, 2026.

ANALYSIS OF THE MOTION TO SEVER

Plaintiffs bring this Motion under Code of Civil Procedure Sections 379.5 and 1048(b). Pl.'s Mot. to Sever 3:5-10. Moving Plaintiffs argue that Separate trials will avoid prejudice and jury confusion and promote convenience, expedition, and judicial economy. *Id.*

The Court respectfully disagrees and denies severance. In the broad exercise of its discretion, the Court finds that trying these matters separately:

- will not promote convenience,
- will not avoid unfair prejudice, and
- will not make the litigation more efficient and economical.

First, the Court has twice previously denied Plaintiffs relief on their severance requests—in the Court's Orders filed on December 1, 2025, and on December 3, 2025, as discussed in detail above. While Plaintiffs argue that this Motion is procedurally distinct, the fundamental relief sought remains the same: severance.

Second, in the broad exercise of its discretion in light of the over twenty years that the undersigned Judge spent in private practice trying civil actions throughout California and the nation, the Court is not persuaded at all that separate trials will promote convenience or efficiency. Discovery has proceeded in this consolidated matter. Severing the claims at this juncture would not simplify matters but would instead create parallel litigation tracks requiring separate case management and separate jury trials.

And it certainly will *not* be more convenient, efficient, and economical for the dozens and dozens of additional potential jurors would be forced to endure voir dire and jury selection in a *second jury trial* that severance now would trigger—not to mention the even greater burdens and inconveniences on the twelve brave souls selected for the second jury (plus multiple alternate jurors) who would be forced to sit through a second jury trial after jury selection if the Court ordered severance. As a second jury trial means a second jury which means a select jury selection process with a second large panel of potential jurors, any party who argues that severance here would be more convenient and efficient certainly does not have jurors in mind. But this Court does. And so, in the broad exercise of its discretion, the Court declines the “stipulated” invitation to sever.

Third, the Court finds that trying the matters *separately* will not reduce any unfair prejudice. To be sure, Plaintiffs argue that a combined trial would require the jury to evaluate materially different school relationships, alleged perpetrators, witnesses, notice evidence, supervisory duties, and theories of causation Pl.'s Mot. to Sever 5:11-22. But that argument fails because the jury in one trial can and will be properly instructed by the trial judge to evaluate each plaintiff's claims against each defendant separately based on the distinct evidence applicable to each claim.

Fourth, lack of unanimous party consent weighs against severance here. While some parties support severance, self-represented Plaintiff John Roe 2 advised that he would not agree to the stipulation. Pl.'s Mot. to Sever 8:4-7. And John Roe 2 is a party to this action and has not consented to severance.

Fifth, no party can seriously claim the slightest surprise by this Order DENYING this (third) severance request. The Court already denied two applications for severance (*see* Dec. 1, 2025 Order and Dec. 3, 2025 Order *supra*). The third time is not the charm.

And finally, as the Court made crystal clear that “*All parties* are Notice that there will be no further continuance of the August 24, 2026 trial date” back on December 12, 2025 (*see* Dec. 12, 2025 Order *supra*) (emphasis added), *all parties* have been given a full and fair chance to be ready for the August 24, 2026 trial. So there is no prejudice at all by the Court now telling all parties to proceed to trial on August 24, 2026.

ORDER & CONCLUSION

For the foregoing reasons, Plaintiffs John Roe 1 and John Roe 4’s Motion to Sever Claims Against Santa Clara Unified School District Into a Separate Action is **DENIED** without prejudice. The long-set August 24, 2026, at 8:45 AM trial date in Department 18 **REMAINS AS SET** for all parties: Plaintiffs John Roe 1, John Roe 2, John Roe 3, John Roe 4, and John Roe 5 against Defendants Mountain View Whisman School District, Santa Clara Unified School District, and all other named Defendants.

Accordingly, all parties are **ORDERED** to proceed to trial on August 24, 2026.

That said, the undersigned Judge respectfully notes that this Order **DENYING** this Motion is *without prejudice* in the sense that Plaintiffs (and indeed any parties) remain free to make any motion *in limine* requesting this same relief or any relief from the trial judge, who will be assigned at the August 20, 2026 Trial Assignment Hearing, and who will be free to conduct this trial in any manner that the trial judge sees fit.

SO ORDERED.

Date: August 19, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

Line 10

Case Name: *Iretunde Akinsola, et al. v. John Finister, et al.*

Case No.: 23CV420753

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendant and Cross-Complainant Lawrence Wu (“Wu”) moves under Code of Civil Procedure Sections 473(a), 426.50, and 576.5 for leave to file a First Amended Cross-Complaint in order to avoid a forfeiture for a cause of action upon such terms as the Court deems just and proper. Notice of Motion (the “Motion”) at 1:24-2:5 (filed: Dec. 23, 2025).

The Motion came on for hearing on August 19, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

I. FACTUAL AND PROCEDURAL BACKGROUND

This civil action arises from Plaintiffs’ allegations of mistreatment while they rented and occupied the real property located at 2552 Castleton Way in San Jose. Plaintiffs were tenants of Defendant Trenton Finister. The lease arrangements started in 2021 and were in place when Wu purchased the property at a foreclosure sale in July 2022.

The original Complaint in this action was filed August 11, 2023, naming John Finister, Trenton Finister, and Does 1 through 25; it did not name Wu. The First Amended Complaint was filed December 4, 2024, naming John Finister, Trenton Finister, Lawrence Wu, and Does 1 through 25.

On or about February 26, 2025, Wu filed a general denial to the Plaintiff’s first Amended Complaint, which his counsel says prevented his office from filing a FACC without a court order. Declaration of Defense Counsel Mark K. Oto in Support of Motion (“Oto Decl.”) at ¶ 2 (filed: Dec. 23, 2025).

On April 3, 2025, Wu demurred to the First Amended Complaint and, that same day, filed his original Cross-Complaint naming only Trenton Finister and Roes 1 through 20, inclusive, and seeking only indemnity and contribution.

Plaintiffs filed a Second Amended Complaint on or about September 30, 2025. In order to respond to the SAC, Wu’s counsel conducted research on the various issues involved.

On October 29, 2025, Wu’s counsel tendered Wu’s First Amended Cross-Complaint